

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO., LTD.,

RESPONDENT.

FOURTH JOINT MOTION FOR EXTENSION OF TIME

Complainant, Samsung Electronics America, Inc. (“SEA”), and Respondent, HMM Co., Ltd. (“HMM”) (each a “Party” and collectively the “Parties”), through their undersigned counsel, respectfully submit this Fourth Joint Motion for Extension of Time (“Motion”). In conjunction with this application, the Motion also reports on the status of depositions; the Parties’ good-faith efforts to resolve discovery issues that arose following discovery conducted to date; and how the progress of certain depositions has been affected by the unresolved issue that was the subject of the Parties’ respective submissions on May 22, 2026, Dkt. Nos. 56 and 57 (the “Claw Back Issue”).

Due to the Parties’ ongoing efforts to cooperatively resolve discovery issues, including additional document productions, and complete fact depositions, they respectfully seek an Order extending the discovery deadlines by approximately 90 days, extending the close of discovery

from July 31, 2026, to October 30, 2026, and resetting all other case deadlines in the Presiding Officer's Amended Scheduling Order commensurately. This would allow additional time for the Claw Back Issue to be ruled upon and may assist the parties concerning outstanding issues regarding the productions (as addressed below).

This Joint Motion is filed in compliance with 46 C.F.R. § 502.102, which permits motions for enlargement of time upon a showing of good cause when received at least seven days before the scheduled filing date. The Parties further submit that they met and conferred on July 20, 2026, as required by 46 C.F.R. § 502.71.

A. Joint Motion for Amendment of Schedule

1. The Parties Continue to Work Cooperatively to Efficiently Complete All Fact Depositions

The Parties initially noticed or requested approximately 35 fact depositions across several U.S. states and internationally. Dkt. 48 at 3. To date, SEA has completed 14 depositions and HMM has completed 5 depositions. Despite ongoing discovery challenges, the Parties have continued to work cooperatively since the last scheduling order to complete two additional fact depositions, with a third scheduled for July 30, 2026:

- Wendy Chavana, Director of Import Operations for third-party logistics provider Lotte Global Logistics North America, was subpoenaed and deposed by SEA on June 12, 2026.
- Jinki Park, a retired former COO of HMM and current nonresident advisor, was deposed by SEA on July 12, 2026.
- HMM agreed to produce the custodial documents for Kyunghoon Seti Min, the Deputy General Manager of HMM's "Revenue Creation Part" who is located in Korea, requiring transfer and review of his documents, most of which are in

Korean. These documents were produced by HMM on a rolling basis on May 27, June 19, and June 23, 2026. Mr. Min's deposition is scheduled for July 30, 2026, in New York, New York.

In the interest of efficiency, SEA also withdrew deposition notices for 4 HMM witnesses: Kathryn Thompson, Seungwoo Oh, Junghoon Yoo, and Sangreal Baek. SEA's three remaining noticed fact deponents (Keonshin Lee, Jungyup Lee, and Kyung Bae Kim)¹ are included in the custodian issue discussed below.² In an effort to schedule these remaining depositions, SEA has requested HMM's position on producing deponents' custodial documents via phone and email correspondence. On June 20, 2026, HMM responded by requesting the Parties exchange custodian requests to allow for additional document productions by both Parties. This proposal is discussed in further detail below.

2. HMM Depositions of SEA Witnesses Pending Resolution of the Claw Back Issue

HMM postponed the depositions of SEA witnesses Michael Henderson, Byung Kweon Choi, and Sooyong Choi, which were scheduled to begin May 11, 2026, after SEA provided notice that it clawed back approximately 180 documents as privileged work product ("Claw Back Documents"). Dkt. 57 at 1. Pursuant to the directive in the Presiding Officer's May 15, 2026 Order, the Parties filed their respective memoranda on May 22, 2026 (Dkt. Nos. 56 and 57).

HMM has not proceeded with the depositions of Michael Henderson, Byung Kweon Choi, and Sooyong Choi, and a former SEA employee, Maria Kristina Fernando, because HMM's counsel intends to question these witnesses about material contained in the Claw Back

¹ SEA has also noticed a 143(b)(6) deposition.

² Jinki Park is also included in SEA's custodial requests, and SEA preserves and maintains all previous arguments that his custodial documents should be produced. However, SEA elected to proceed with Mr. Park's deposition to prevent additional delay.

Documents.³ Moreover, SEA will not subject the witnesses to potentially two depositions with the Claw Back Issue *sub judice*. Doing so would add time and costs for both parties to separately prepare and take depositions impacted by the ruling. If desired, both Parties are available for a conference with the Presiding Officer on this issue.

3. Identification and Designation of Additional Custodians

Following completion of the depositions of sixteen witnesses as previously reported to the Presiding Officer (Dkt. 54), each Party evaluated the documents and testimony adduced to date and raised new discovery issues. Those issues are unresolved at present; HMM has not agreed to produce all of the custodial documents sought pursuant to SEA's motion to compel and SEA has not agreed to produce custodial documents for custodians just identified last week. The Parties address the current positions and how they are subject to further negotiation between the parties.

a. SEA Custodial Request

On April 10, 2026, SEA sent HMM a request for the supplemental production of relevant, responsive documents, following 12 depositions of HMM fact witnesses (the "April 10 Letter"). Dkt. 52, Exh. A at 84-85. In that letter, SEA identified what it described as significant gaps in HMM's custodian productions and requested that HMM promptly designate a limited set of additional custodians, search their files, and produce responsive documents. *Id.* at 91-92. SEA identified 25 individuals "who are plainly relevant custodians of documents responsive to SEA's discovery requests, yet who were not identified as custodians or searched by HMM..." *Id.* at 92. To avoid an unduly expansive or open-ended expansion of custodians, however, SEA requested that HMM produce custodial documents for 13 of the identified individuals.

³ Due to the schedule of SEA's witness, Michael Rapske, HMM reserved its right to complete his deposition on April 15, 2026. HMM represents the Rapske completed deposition is also impacted by Claw Back Documents.

On April 24, 2026, SEA filed its Motion to Compel, seeking an order requiring HMM to produce D&D-related financial records, search additional custodians identified through deposition testimony, and produce key categories of documents previously withheld. Dkt. 52. Specifically, SEA requested that HMM “promptly search for and produce responsive documents from the custodians identified by SEA in Exhibit C.” Dkt. 52 at 10. The custodians identified in Exhibit C are the same as those identified in the April 10 Letter. Dkt. 53, Ex. C at 2-3.⁴

On May 1, 2026, HMM filed its Opposition. In its Opposition, HMM argued that an order compelling HMM to produce additional documents is “unnecessary” and would “violate HMM’s due process rights” because HMM did not have a sufficient opportunity to address all of the issues raised in the April 10 Letter. *Id.* at 9. HMM further argued that SEA’s motion is premature because “HMM has agreed to search for [the remaining categories of documents], including documents in the mailboxes of the additional witnesses who were identified at depositions.” *Id.* at 10. Following the filing of HMM’s Opposition and HMM’s position therein, SEA requested HMM clarify if it would produce the requested custodial documents, specifically for noticed deponents, to inform the scheduling of those depositions.⁵

Subsections (b) and (c), *infra*, focus exclusively on the custodial issues and how the parties are addressing a potential resolution. The separately, important discovery issues raised in SEA’s April 24, 2026, Motion to Compel, as opposed by HMM on May 1, 2026, are not the subject of further negotiations and a ruling will be necessary.

⁴ The requested custodians are: Jinki Park, Keonshin Lee, Jungyub (Jay Y.) Lee, Seungwoo Oh Fernando, Kathryn Thompson, Kyung Bae Kim, Set Kyunghoon Min, Seunghoon (Eugene) Lee, Oh Donghwan, YoungSoon (Jeremy) Choi, Younghoon (John) Kim, JiHyun Kim, and Kim Kitae. *Id.*

⁵ HMM did produce the custodial documents for one of the requested individuals, Seti Min, whose deposition is scheduled for July 30, 2026.

b. HMM Dispatcher Request

On April 23, 2026, following certain SEA witnesses depositions, HMM requested that SEA (i) identify all individuals who served as “dispatchers” during the Relevant Period; (ii) confirm the preservation and production of ESI for each such “dispatcher” identified in the deposition testimony; and (iii) supplement SEA’s discovery responses “to include dispatcher materials responsive to” HMM’s discovery requests. HMM April 23, 2026 “Discovery Deficiency Notice”.

SEA responded on May 14, 2026, explaining that the individuals named in HMM’s correspondence held only peripheral roles not warranting additional supplemental document production, and proposing that HMM revisit the issue following the deposition of BK Choi, one of the individuals named in HMM’s correspondence and whom SEA identified as the primary dispatcher relevant to this dispute. SEA further agreed to meet and confer on the issue.

On June 24, 2026, HMM followed up on the issue of “dispatchers” via email. SEA replied on July 6, 2026, reiterating the positions set forth in its May 14 reply letter and inviting HMM to meet and confer on the issue, particularly following HMM’s deposition of Mr. BK Choi.

During a meet and confer on July 20, 2026, HMM requested that SEA produce custodial documents for identified dispatchers in exchange for HMM producing custodial documents for an equal number of custodians requested by SEA. On July 21 and 22, 2026, HMM narrowed the dispatcher requests to three it requested be identified as custodians and be produced for deposition.

c. Proposed Custodial Exchange

The Parties are addressing HMM’s proposal for a custodial exchange and are working collaboratively to reach resolution on this issue to proceed with the remaining depositions. However, a final agreement could not be reached prior to this filing. The amended dates requested below are tailored to allow for finalization of an agreement, transmission of witness documents

(many of which are located on servers in Korea) to the Parties' respective eDiscovery vendors, and review and production of responsive documents. HMM advises that it is expected that many of the responsive documents will be in Korean and require translation. Thereafter, depositions of affected witnesses will be scheduled. In the interim, the Parties will proceed with depositions of the remaining witnesses for whom responsive documents have been produced.

4. Additional Discovery Required Concerning Canadian Shipments

On June 18, 2026, HMM filed a motion for partial summary judgment seeking dismissal of SEA's claims to the extent they are based on shipments discharged at a port in Canada (the "Subject Shipments"). Dkt. 64. SEA opposed the motion on July 6, 2026, arguing, among other things, that genuine issues of material fact remain as to whether the vessels carrying the Canada Shipments also called at U.S. ports, and that the current record is incomplete to resolve HMM's common carrier status with respect to those shipments. Dkt. 66 and 68. HMM replied on July 13, 2026, taking the position that the existing record is sufficient to decide the jurisdictional question and that no further discovery is required. Dkt. 69.

As a direct result of the issues raised in that briefing, SEA has identified additional, targeted discovery it must pursue to address the issues raised before the Presiding Officer resolves HMM's motion, including document requests directed to the voyage itineraries and routing history of the vessels that carried the Subject Shipments, HMM's internal decision-making concerning the discharge of U.S.-bound cargo at Canadian ports, and related written discovery, together with at least one additional fact deposition of an HMM witness with knowledge of those routing decisions. HMM does not agree that this issue should bar granting summary judgment in its favor or that SEA is entitled to the supplemental discovery that it seeks on this issue. Nevertheless, SEA contends this discovery bears directly on the jurisdictional and factual disputes framed by HMM's

motion, SEA's opposition, and HMM's reply, and the Parties accordingly require the additional time requested herein to complete it in an orderly manner before the close of discovery.

5. Proposed Amended Scheduling Order

Under the Presiding Officer's Fourth Amended Scheduling Order dated May 15, 2026 ("May 15 Order"), depositions are scheduled to end on July 31, 2026. The Parties respectfully submit that good cause exists to extend the scheduling order by 90 days to complete the work described above, make additional document productions, and prepare for and conduct the remaining depositions in this matter subject to rulings by the Presiding Officer. The Parties respectfully request the extension and resetting of the deadlines as follows:⁶

Event	Current Date	Proposed New Date
Fact depositions end; joint status report due	July 31, 2026	October 30, 2026
Expert reports due	August 31, 2026	December 1, 2026
Rebuttal expert reports due; expert depositions begin	September 30, 2026	January 4, 2027
Discovery closed	October 26, 2026	February 1, 2027
Meeting to discuss joint prehearing statement must be held by this date; exhibits must be exchanged by this date	November 9, 2026	February 12, 2027
Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due	December 7, 2026	March 12, 2027
Prehearing conference after receiving the joint prehearing statement	TBD	TBD

The Parties welcome the opportunity to address any issues regarding the above, the proposed amended schedule, and the circumstances which give rise to this application before the Presiding Officer. Based on the good cause shown above, the Parties request an Order extending the current discovery deadline and resetting the deadlines in this case as outlined above.

⁶ Some of the proposed dates are slightly amended from the requested 90-day extension to account for federal holidays and weekends.

Respectfully Submitted,

Dated: July 24, 2026

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